

Plaintiff Ernisha Johnson seeks leave to file an amended complaint against an additional defendant. The Court received no opposition.

The initial complaint was filed February 3, 2025, with a First Amended Complaint filed July 21, 2025. Current Defendant Hunter Curtis Campbell filed an Answer on September 9, 2025. Plaintiff asserts that “[t]hrough recent discovery, Plaintiff identified an additional individual and/or business entity directly involved in the motor-vehicle incident described in the complaint.” Pursuant to Code of Civil Procedure section 428.50(c), leave of the Court is required in this circumstance. There is no indication of bad faith and the Court does not see any prejudice. The lack of opposition does bolster both of those findings.

For the reasons stated above, the Motion is **granted**. Plaintiff must file the Second Amended Complaint within five days.

10. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING ON DEMURRER TO: COMPLAINT

FILED BY:

TENTATIVE RULING:

The demurrer filed by Nationstar Mortgage LLC d/b/a Rushmore Servicing and Deutsche Bank Trust Company Americas, as Trustee for Residential Accredited Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates, Series 2006-QO4, joined by Mortgage Electronic Registration Systems, Inc., is moot.

Plaintiff filed and served a First Amended Complaint (FAC) on April 1, 2026, which supersedes the original pleading. (*People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506.) Under Code of Civil Procedure section 472, a plaintiff may amend once as of right after a demurrer is filed, provided the amended pleading is filed and served no later than the deadline for filing an opposition. The demurrer was originally calendared for April 8, 2026, continued to April 9, 2026, in anticipation of reassignment to Department 10, and further continued by Department 10 to April 23, 2026. In their Notice of Non-Opposition filed March 30, 2026, Defendants asserted that the operative opposition deadline was March 26, 2026, based on the April 9 hearing date. Even assuming that is correct, the Court would grant leave to amend in any event. Any ruling on the original pleading would therefore be an idle act.

11. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING IN RE: JOINDER TO DEMURRER

FILED BY:

TENTATIVE RULING:

See Line 10.

12. 9:00 AM CASE NUMBER: C25-02439
CASE NAME: CHANEL READER-JONES VS. MARJORIE RINKER
***MOTION/PETITION TO COMPEL ARBITRATION AND DISMISS OR STAY PROCEEDINGS**
FILED BY: RINKER, MARJORIE
TENTATIVE RULING:

The Court **continues** the motion to compel arbitration to April 30, 2026 at 9:00 a.m.

13. 9:00 AM CASE NUMBER: C25-02681
CASE NAME: 98 LA COLIMA LLC VS. PREMDIP DHOOT
HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRIT
FILED BY: 98 LA COLIMA LLC
TENTATIVE RULING:

Before the Court are two applications by plaintiff, 98 La Colima, LLC, to attach property owned by defendant HD 2670 Walnut Blvd Member, LLC and individual defendant, Premdip S. Dhoot.

Background

Before the Court are two applications by plaintiff, 98 La Colima, LLC, to attach property of defendant, HD 2670 Walnut Blvd Member, LLC and its member and manager, defendant Premdip S. Dhoot.

This case arises from a loan by plaintiff to defendant, HD 2670 Walnut Blvd Member, LLC. On August 24, 2022, defendant Dhoot signed a promissory note on behalf of HD 2670 Walnut Blvd Member, LLC. The note was for the principal amount of \$500,000, to be re-paid, along with an additional \$120,821.92 "Lender's Return," by January 1, 2024 ("Maturity Date"). (See Declaration of Syed A. Ali in Support of Application for Right to Attach Order and Writ of Attachment, hereinafter "Ali Decl.," Ex. 1 [Promissory Note] and Ex. 2 [Payment Guaranty].)

The complaint alleges five causes of action (though a numbering error might lead one to believe there are four): (1) Breach of Written Promissory Note, (2) Breach of Guaranty Agreement, (3) Account Stated, (3) Money Lent; and (4) Money Paid, Laid Out, and Expended. The second cause of action is alleged against Dhoot and the others are against HD 2670 Walnut Blvd Member, LLC.

Plaintiff contends defendants refuse to comply with their repayment obligations and intend to sell the properties it seeks to attach here. Plaintiff contends defendants are likely to conceal any proceeds from the sales to prevent plaintiff from levying on such proceeds. Plaintiff attaches an email sent on September 16, 2025 demanding payment by the next day at 5:00 p.m. Plaintiff then filed this action on September 18, 2025. (See Ali Decl., Ex. 3 [demand email].) In November 2025, plaintiff filed the present applications for right to attach order and order for writ of attachment. Each application is supported by a declaration by Syed A. Ali, plaintiff's managing member.

With respect to HD 2670 Walnut Blvd Member, LLC, plaintiff seeks to attach 13 real properties and the following assets held in the name of the LLC: "real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, and general intangibles." With respect to Dhoot, plaintiff seeks to attach, "[a]ll real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts